

International Copyright Order, 1999

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Union of India - Act

International Copyright Order, 1999

UNION OF INDIA

India

International Copyright Order, 1999

Rule INTERNATIONAL-COPYRIGHT-ORDER-1999 of 1999

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International Copyright Order, 1999

Published vide S.O. 228(E), dated 24.3.1999, published in the Gazette of India, Ext., Pt. II, Section 3(i) dated 6.4.1999.

7.

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In exercise of the powers conferred by section 40 of the Copyright Act, 1957 (

14 of 1957

), and in supersession of the International Copyright Order, 1991, the Central Government hereby makes the following Order, namely:-

1.

(1)

This Order may be called The International Copyright Order, 1999.

(2)

It shall come into force on the date of its publication in the Official Gazette.

2.

In this Order, unless the context otherwise requires,-

(a)

"Berne Convention Country" means a country which is a member of the Berne Copyright Union, and includes a country mentioned either in Part I or in Part II of the Schedule;

(b)

"Phonogram" means an exclusively aural fixation of a performance or other sounds;

(c)

"Phonograms Convention Country" means a country which has either ratified, or accepted, or acceded to the Convention for the Protection of Producers of Phonograms against Unauthorized Duplication of their Phonograms, done at Geneva on the twenty-ninth day of October, one thousand nine hundred and seventy-one, and includes a country mentioned in Part V of the Schedule;

(d)

"Schedule" means the Schedule appended to this Order;

(e)

"Universal Copyright Convention Country" means a country which has either ratified or accepted, or acceded to the Universal Copyright Convention, and includes a country mentioned either in Part III or in Part IV of the Schedule;

(f)

"World Trade Organisation Country" means a country which is a member of the World Trade Organisation and which has either ratified, or accepted, or acceded to the Agreement on Trade Related Aspects of Intellectual Property Right, 1994, and includes a country mentioned in Part VI of the Schedule.

3.

Subject to the provisions of paragraphs 4, 5 and 6, all the provisions of the Copyright Act, 1957 (14 of 1957

) (hereafter referred to as the Act), except those in Chapter VIII, and those other provisions which apply exclusively to Indian works, shall apply:-

(a)

to any work first made or published in a country mentioned in Part I, II, III, IV or VI of the Schedule, in like manner as if it was first published in India;

(b)

to any work first made or published in a country other than a country mentioned in Part I, II, III, IV or VI of the Schedule, the author of which was, at the date of such publication, or, where the author was dead on that date, he was at the time of his death, a national of a country mentioned in Part I, II, III, IV or VI of the Schedule, in like manner, as if the author was a citizen of India at that point of time;

(c)

to an unpublished work, the author whereof was, at the time of the making or publication of the work, a national or domiciled in any country mentioned in Part I, II, III, IV or VI of the Schedule, in like manner, as if the author was a citizen of, or domiciled in India;

(d)

to any work first made or published by a body corporate incorporated under any law of a country mentioned in Part I, II, III, IV or Part VI of the Schedule, in like manner, as if it was incorporated under a law in force in India; and

(e)

to a sound recording first made, the producer of which was, at the date of such production, a national of a country mentioned in Part V or Part VI of the Schedule or a body corporate incorporated under a law in force in such a country, in like manner as if the producer was the citizen of India or a body corporate incorporated under a law in force in India, as the case may be, at that point of time.

4.

Notwithstanding anything contained in paragraph 3, the provisions of Chapter VIII of the Act shall apply to a Broadcasting Organisation and a Performer in a World Trade Organisation Country mentioned in Part VI of the

Schedule.

5.

Notwithstanding anything contained in clause (a) of paragraph 3 and paragraph 4 the provisions of sub-section (1) of section 32 of the Act-

(i)

shall not apply to a work first made or published in any Berne Convention Country mentioned in Part I or Part II of the Schedule;

(ii)

shall not apply to a work first made or published in any World Trade Organisation Country mentioned in Part VI of the Schedule;

(iii)

shall apply to a work first made or published in any Universal Copyright Convention Country mentioned in Part III or Part IV of the Schedule, only in respect of the translation of such work into any language specified in the Eighth Schedule to the Constitution of India.

6.

The provisions of sections 32 [excluding its sub-section (1), 32-A and 32-B shall apply to a work first made or published in a Berne Convention Country mentioned in Part I of the Schedule or in a Universal Copyright Convention Country mentioned in Part III of the Schedule or in a World Trade Organisation Country mentioned in Part VI of the Schedule.

7. The term of copyright in a work shall not exceed that which is enjoyed by it in its country of origin.

Explanation .-In this paragraph, "the country of origin" shall mean-

(a)

in the case of a work first made or published in a Berne Convention Country or a Universal Copyright Convention Country or a World Trade Organisation Country, that country;

(b)

in the case of a work made or published simultaneously either in a Berne Convention Country or a Universal Copyright Convention Country or in a World Trade Organisation Country and in a country which is neither a Berne Convention Country nor a Universal Copyright Convention Country nor a World Trade Organisation Country, the former country;

(c)

in the case of a work which is made or published simultaneously in several Berne Convention Countries, the country whose laws grant the shortest term of copyright to such a work;

(d)

in the case of a work which is made or published simultaneously in several Universal Copyright Convention Countries, the country whose laws grant the shortest term of copyright to such a work;

(e)

in the case of a work which is made or published simultaneously in several World Trade Organisation Countries, the country whose laws grant the shortest term of copyright to such a work;

(f)

in the case of an unpublished work or a work first made or published in a country other than a Berne Convention Country or a Universal Copyright Convention Country or a World Trade Organisation Country, the country of which the author was a citizen, or the country in which he was domiciled at the time of its first publication, whichever grants the longer term of copyright.

Schedule

PART - I

Berne Convention Countries Which Have Ratified/accepted/ Acceded To The 1971 Text Of The Convention

[See Paragraph 2(a)]

1.Albania

71.Kyrgyzstan

2.Algeria

72. Latavia

3.Antigua and Barbuda

73.Lesotho

4.Argentina
74.Liberia
5.Armenia
75. Libiyan Arab Jamahiriya
6.Australia
76.Liechtenstein
7.Austria
77.Lithuania
8.Azerbaijan
78. Luxumberg
9.Bahamas
79.Malawi
10.Bahrain
80.Malaysia
11.Bangladesh
81.Mali
12.Barbados
82.Malta
13.Belarus
83.Mauritania
14.Belgium
84.Mauritius
15.Belize
85.Mexico
16.Benin
86.Monaco
17.Bolivia
87.Mongolia
18.Bosnia&Herzegovina
88.Morocco
19.Botswana
89.Namibia
20.Brazil
90.Netherlands
21.Bulgaria
91.Niger
22.Burkina Faso
92.Nigeria
23.Cameroon
93.Norway
24.Canada
94.Oman
25.Cape Verde
95.Panama
26.Central African Republic
96.Paraguay
27.Chile
97.Peru
28.China
98.Philippines
29.Colombia

99.Poland
30.Congo
100.Portugal
31.Costa Rica
101.Qatar
32.Coted'Ivoire
102.RepublicofKorea
33.Croatia
103.RepublicofMoldova
34.Cuba
104.Panama
35.Cyprus
105.Russian Federation
36.Czech Republic
106.Rwanda
37.Democratic Republic of the Congo
107. Saint Kitts &Nevis
38.Denmark
108.Saint Lucia
39. Domonica
109.Saint Vincent and the Grenadines
40.Dominican Republic
110.Senegal
41.Ecuador
111.Singapore
42.Egypt
112.Slovakia
43.El Salvador
113.Slovenia
44.Equatorial Guinea
114.South Africa
45.Estonia
115.Spain
46.Finland
116.Sri Lanka
47.France
117.Surinam
48.Gabon
118.Swaziland
49.Gambia
119.Sweden
50.Georgia
120.Switzerland
51.Germany
121. Tajikstan
52.Ghana
122.Thailand
53.Greece
123. TheFormerYugoslaviaRepublicofMacedonia
54.Grenada
124.Togo

55.Guatemala
125.Trinidad and Tobago
56.Guinea
126.Tunisia
57.Guinea-Bissau
127.Turkey
58.Guyana
128.Ukraine
59.Haiti
129.United Kingdom
60. Holy See
130. UnitedRepublicofTanzania
61.Honduras
131.United States of America
62.Hungary
132.Uruguay
63.Iceland
133.Venezuela
64.Indonesia
135.Zambia
65.Italy
136.Zimbabwe
134.Yugoslavia
66,Jamaica
67.Japan
68.Jordan
69.Kazakhstan
70.Kenya

PART-II

Berne Convention Countries Which Are Yet To Ratify/ Accept/ Accede To The 1971 Text Of Convention
[See Paragraph 2(a)]

1. Chad
2. Fiji
3. Ireland
4. Israel
5. Lebanon
6. Madagascar
7. New Zealand
8.

Pakistan

PART-III

Universal Copyright Convention Countries Which Have Ratified/ Accepted/acceded To The 1971 Text Of The Convention
[See Paragraph 2(e)]

1.Algeria
30.Kenya
2.Australia
31.Mexico
3.Austria
32.Monaco
4.Bahamas

33.Morocco
5.Bangladesh
34.Netherlands
6.Barbados
35.Niger
7.Bolivia
36.Norway
8.Bosnia&Herzegovina
37.Panama
9.Brazil
38.Peru
10.Bulgaria
39.Poland
11.Cameroon
40.Portugal
12.China
41.RepublicofKorea
13.Colombia
42.Russian Federation
14.Costa Rica
43.Rwanda
15. Croata
44.Saint Vincent and the Grenadines
16.Cyprus
45.saudi Arabia
17.Czech Republic
46.Senegal
18.Denmark
47.Slovakia
19.Dominican Republic
48.Slovenia
20. Ecudor
49.Spain
21.El Salvador
50.Sri Lanka
22.Finland
51.Sweden
23.France
52.Switzerland
24.Germany
53.Trinidad and Tobago
25.Guinea
54.Tunisia
26. Holy See
55.United Kingdom
27.Hungary
56.United States of America
28.Italy
57.Uruguay
29.Japan
58.Yugoslavia

PART-IV

Universal Copyright Convention Countries Which Are Yet To Ratify/ Accept/accede To The 1971 Text Of The Convention

[See Paragraph 2(e)]

- 1.Andorra
19. Lao People's Democratic Republic
- 2.Argentina
- 20.Lebanon
- 3.Belarus
- 21.Liberia
- 4.Belgium
- 22.Liechtenstein
- 5.Belize
- 23.Luxembourg
- 6.Cambodia
- 24.Malawi
- 7.Canada
- 25.Malta
- 8.Chile
- 26.Mauritius
- 9.Cuba
- 27.New Zealand
- 10.Fiji
- 28.Nicaragua
- 11.Ghana
- 29.Nigeria
- 12.Greece
- 30.Pakistan
- 13.Guatemala
- 31.Paraguay
- 14.Haiti
32. Phillippines
- 15.Iceland
- 33.Tajikistan
- 16.Ireland
- 34.Ukraine
- 17.Israel
- 35.Venezuela
18. Kazakhstan
- 36.Zambia

PART-V

Phonograms Convention Countries

[See Paragraph 2(c)]

- 1.Argentina
- 30.Israel
- 2.Australia
- 31.Italy
- 3.Austria
- 32.Jamaica
- 4.Barbados
- 33.Japan

5.Brazil
34.Kenya
6.Bulgaria
35.Latvia
7.Burkina Faso
36. Liechtenstein
8.Chile
37.Lithuania
9.China
38.Luxembourg
10.Colombia
39.Mexico
11.Costa Rica
40.Monaco
12.Cyprus
41.Netherlands
13.Croatia
42.New Zealand
14.Czech Republic
43.Norway
15.Democratic Republic of the Congo
44.Panama
16.Denmark
45.Paraguay
17.Ecuador
46.Peru
18.Egypt
47.RepublicofKorea
19.El Salvador
48.RepublicofMaoldova
20.Estonia
49.Romania
21.Fiji
50.Russian Federation
22.Finland
51.Slovakia
23.France
52.Slovenia
24.Germany
53.Spain
25.Greece
54.Sweden
26.Guatemala
55.Switzerland
27. Holy See
56. TheFormer Yugoslav Republic of Macedonia
28.Honduras
57.Trinidad and Tobago
29.Hungary
58.Ukraine
59.United Kingdom

60. United States of America

61. Uruguay

62. Venezuela

PART-VI

The World Trade Organisation Countries

[See Paragraph 2(1)]

1. Albania

71. Kyrgyz Republic

2. Angola

72. Latvia

3. Antigua and Barbuda

73. Lesotho

4. Argentina

74. Liechtenstein

5. Australia

75. Luxembourg

6. Austria

76. Macau, China

7. Bahrain

77. Madagascar

8. Bangladesh

78. Malawi

9. Barbados

79. Malaysia

10. Belgium

80. Maldives

11. Belize

81. Mali

12. Benin

82. Malta

13. Bolivia

83. Mauritania

14. Botswana

84. Mauritius

15. Brazil

85. Mexico

16. Brunei Darussalam

86. Mongolia

17. Bulgaria

87. Morocco

18. Burkina Faso

88. Mozambique

19. Burundi

89. Myanmar

20. Cameroon

90. Namibia

21. Canada

91. Netherlands-for the Kingdom in Europe and for the Netherlands Antilles

22. Central African Republic

92. New Zealand

23. Chad

93.Nicaragua
24.Chile
94.Niger
25.Colombia
95.Nigeria
26.Congo
96.Norway
27.Costa Rica
97.Pakistan
28.Coted'Ivoire
98.Panama
29.Cuba
99.Papua New Guinea
30.Cyprus
100.Paraguay
31.Czech Republic
101.Peru
32.Democratic Republic of the Congo
102.Philippines
33.Denmark
103.Poland
34.Djibouti
104.Portugal
35.Dominica
105.Qatar
36.Dominican Republic
106.Romania
37.Ecuador
107.Rwanda
38.Egypt
108. Saint Kitts & Nevis
39.El Salvador
109.Saint Lucia
40.Estonia
110.Saint Vincent and the Grenadines
41. European Community
111.Senegal
42.Fiji
112.Sierra Leone
43.Finland
113.Singapore
44.France
114.Slovak Republic
45.Gabon
115.Slovenia
46.Gambia
116.Solomon Islands
47.Georgia
117.South Africa
48.Germany
118.Spain

49.Ghana
119.Sri Lanka
50.Greece
120.Suriname
51.Grenada
121.Swaziland
52.Guatemala
122.Sweden
53.Guinea
123.Switzerland
54.Guinea-Bissau
124.Tanzania
55.Guyana
125.Thailand
56.Haiti
126.Togo
57.Honduras
127.Trinidad and Tobago
58.Hong Kong,China
128.Tunisia
59.Hungary
129.Turkey
60.Iceland
130.Uganda
61.Indonesia
131.United Arab Emirates
62.Ireland
132.United Kingdom
63.Israel
133.United States of America
64.Italy
134.Uruguay
65.Jamaica
135.Venezuela
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